

STANDING ORDER NO.309

In superssion of existing circulars on regulation of processions in the city, the following instructions are issued:-

- (a) Application for grant of permission for all rallies/processions must be applied at least 7 days in advance, excluding the day of the event.
- (b) For a procession/rally confined to one district only, the concerned District shall examine the request and grant the permission for the same after obtaining views of Traffic & SB. However, where more than one District is involved, the permission is granted by PHQ after obtaining comments of the concerned District DCsP, Traffic and the Special Branch.
- (c) When more than one District is involved, all such permissions should be processed in PHQ, which would send such applications first to DCP/SB for Immediate assessment. DCP/SB after contacting the organizer would furnish details like number of participants, nature of demand, leaders who are likely to participate, whether programme would remain peaceful or otherwise last procession & its conduct and whether it is desirable to grant such permission.
- (d) Apart from the DCP/SB, PHQ would also obtain NOC from the District concerned as well as from the DCP/Traffic.
- (e) A list of 23 items have been included under the head of terms & conditions for the grant of permission to processions and rallies. These must invariably be given to the organizers along with a copy of permission, if accorded against proper acknowledgement.
- (f) If, however, the permission has to be rejected, the same must be conveyed to the organizer much before the date of the event, so that he could inform the participants in time.
- (g) No new religious rallies/processions should be granted permission. Permission should be granted only to traditional processions and there also negotiations should be held to reduce the size/route of the procession as far as possible.
- (h) In the recent past, we have witnessed that Parliament Street (Jantar Mantar) cannot accommodate more than 5000, persons nor can vehicles be allowed to be brought by the organizers. In case there are large numbers of vehicles involved and they come with the organizers, the venue should be shifted to Ram Lila Ground where the vehicles can be parked.

In case the ground of demonstration is going to be upward of 5000 then venue can only be Ramlila Ground. From Ramlila ground they cannot go to Jantar Mantar but the organizers can form a small group of 3 to 4 persons who can be taken to Jantar Mantar or VVIP offices for submission of memorandum. If, however, the demonstrators are less than 5000 at Ramlila ground, they can be allowed to go to Jantar Mantar in the form of a procession of 2 to 3 per line provided volunteers from the organizers are available at Tolstoy Marg/Barakhamba Road crossing and Tolstoy Marg/Janpath crossing. These volunteers will assist the Traffic police in Traffic Control at the crossings, which should be permitted intermittently by stopping the processionists.

In case the gathering is expected to be upward of 50000 then the number of vehicles accordingly swell up which create major problems for traffic at intersections like Rajghat, ITO, W point, Delhi Gate etc. Any gathering of over 50000 should not be permitted at Ramlila Ground but should be offered Burari grounds as an alternative. If, however, the organizers select a park or an open area elsewhere in Delhi, the same can be examined on merits.

Following checklist containing complete sequence of action in handling such demonstrations/rallies must be meticulously followed by the concerned district: -

1. Application for demonstration/rally received in the office of DCP.
2. Other sources of information i.e. IB/Spl.Branch/newspapers etc. be used to get more details.
3. Contact with the organizer be established by ACP/SHO to find out more details, report to DCP/Distt.
4. Permission/rejection with specific terms and conditions prescribed to be accorded to the applicant. In case of rejection, reasons must be mentioned and it should be ensured that both permission or rejection is received by the organizers.
5. Elaborate police arrangements must be issued for each demonstration with complete details of deployment.
6. Actual force demanded and received for the arrangement be recorded.

7. Arrangement at the place of demonstration should include the following: -
 - (a) Barricading.
 - (b) Positioning of staff – at First Barricade without lathis and be equipped with only helmet and body protectors. Second Barricade should again be without lathis but should be equipped with body protectors, cane shields and helmets. However, Third Barricade should remain fully equipped with all riot control equipments, such as sticks, body protectors, helmets, cane shields and teargas component.
 - (c) Display of banner indicating promulgation of Section 144Cr.P.C.
 - (d) Positioning of water cannons, teargas shell section and force equipped with lathis should be assigned under one officer each.
 - (e) At least 2 video graphers be available on either side of the demonstration to capture both demonstrators as well as police response/action.
 - (f) Location of Ambulance/PCR vans for shifting injured persons.
 - (g) Loud hailers should be available.
8. Proper briefing of staff before deployment and this should be included in the write up of police arrangements.
9. Constant liaison with the leaders/organizers must continue when they reach the venue and address the gathering and control them
10. Message to Control Room on all the important activities of demonstrations/rally/processions etc. from time to time.
11. Re-briefing of the staff according to the situation-utmost restraint to be shown.
12. Repeated use of PA system by a responsible officer-appealing/advising the leaders and demonstrators to remain peaceful and come forward for memorandum/deputation etc. or court arrest peacefully. Announcements should be videographed.
13. If they do not follow appeal and turn violent declare the assembly unlawful on PA system & videograph.
14. Warning on PA system prior to use of any kind of force must be ensured and also videographed.

- 15 Police action to be taken on the specific orders of the SHO/ACP/DCP or the senior officer present at the spot.
- 16 For cane charge, only specific force should be identified for action under the supervision of SI/Inspector, Leaders to be protected from injury particularly. Separate party to be made for this.
- 17 Use of controlled cane charge only for dispersal – no action on retreating crowd.
- 18 Logbook of Control Room be properly maintained (briefing of Control Room staff).
- 19 Announcement for injured to take them to hospital for medical aid-use of stretchers to carry the injured up to the vehicle/ambulance etc. & videographed.
- 20 Send the police personnel injured during the assault by demonstrators, for medical opinion and treatment.
- 21 In case of arrest/detention of MPs, MsLA, MsLC, information to be given to concerned department, Speaker Lok Sabha, Chairman, Rajya Sabha, Speaker Assembly, by quickest means both in writing and on wireless.
- 22 Special attention be paid while dealing with women's demonstrations-only women police to tackle them.
- 23 Even after the demonstration is over, proper liaison with the leaders specially political leaders be ensured to maintain cordial relations.
- 24 During registration of case-evidence regarding use of stones, lathis, dandas etc. to be videographed and taken into possession from the site.
- 25 Staff detailed at RML to be briefed in advance to ensure proper record of the injured and keep the hospital staff ready to ensure timely treatment.
- 26 Details of peaceful demonstration/detention u/s 65 D.P.Act-details to be mentioned in the daily diary.
- 27 In case MPs, Central Cabinet Ministers, State Ministers and former PMs are leading the demonstrations, specific group may be detailed to ensure their personal safety in the event of any police action. Besides, such leaders would be available with the police to control the violent mob.

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In the event of any demonstration turning violent and force in the form of lathi charge or teargas is resorted to in which people get injured, an incident report must be sent by DCP/District addressed to Jt. C.P./concerned with a copy to SO to C.P., Principal Secretary (Home), Govt of NCT, Joint Secretary (UT), MHA for information of the Govt. without any loss of time, particularly when the Parliament is in session.

The terms and conditions for taking out and handling any major rally/procession are enclosed herewith for necessary action in the matter.



(T.N.MOHAN)

DY. COMMISSIONER OF POLICE,
HEADQUARTERS : DELHI.

Encls : As above.

No. 4062-4140 /C&T (AC-IV) PHQ, dated, Delhi the 31-01-03

Copy forwarded to the: -

1. All Spl.CsP/Jt.CsP/Addl.CsP, Delhi. For favour of information.
2. SO to C.P., Delhi.
3. DCsP/All Distts. Special Branch, PCR and Traffic Delhi/New Delhi for necessary compliance.
4. All ACsP/PHQ including computer centre.
5. LA & FA to C.P. Delhi
6. All Insps./PHQ including C.A. Delhi.
7. HAR/PHQ with 10 spare copies.

**TERMS AND CONDITIONS FOR TAKING OUT
RALLIES/PROCESSIONS.**

The permission for taking out a procession/rally is subject to the following conditions.

1. The organizer shall also obtain a "No Objection Certificate" from the land owning agency with regard to holding rally/meeting etc.
2. The organizer shall carry the permission granted to them in original to be shown to a police officer on demand.
3. They will depute a person with whom the police can liaise for various purposes.
4. Organisers would make adequate arrangements for drinking water (by providing tankers) and First Aid/Medical Aid in consultation with the civic/local bodies at the site and also during the procession.
5. The Procession will proceed in an orderly manner along the sanctioned route keeping to the left and will not halt on the way or cause impediment to the normal flow of traffic.
6. The organizers shall allow cross traffic at intersection as prescribed by the police.
7. The organizer shall keep some volunteers at these crossing to help the police.
8. No procession would normally occupy more than one fourth of the width of the road. Traffic should be allowed to flow on the road in both directions during any procession. The organizers would keep adequate number of volunteers to help the police to keep flow of traffic. At road crossing, the processionists would stop to allow any cross traffic to be cleared before proceeding further. In case a road is not sufficiently broad, the local police should regulate the procession suitably.
9. No demonstration/rally/meeting etc. would be allowed on roads and road crossings. Except at places especially earmarked for such a purpose by the police authorities, meeting should be held on grounds or on footpaths only.

10. Organiser of processions will be responsible for ensuring that the route permitted to them by the police authorities is strictly followed.
11. No procession should take more than a maximum of four hours from start to finish. The tail of any procession shall reach the finishing point within four hours of start positively.
12. The participants in the procession will not carry any lathis, firearms, spears, swords and other articles likely to be used as a weapon of offence. Besides the carrying of imitation firearms, resembling stengun, SAF, Carbine or AK-47, pistol, rifle or any other firearm is also not allowed as it is likely to cause danger to human life or safety or disturbance of public tranquility or a riot. The participants may carry flags, banners, etc on sticks purely for display purposes.
13. No participant shall make provocative speeches or use language calculated or likely to inflame passions of the crowd or incite them or promote enmity between different groups on ground of religion, race, place or birth, residence language etc. or act in any manner which is prejudicial to the maintenance of harmony between such groups or disturb public tranquility.
14. The participants of the procession/rally shall comply with all lawful directions given to them by the Commissioner of Police, Delhi or any other Police officer on duty.
15. No participant shall act in a manner as to result in damage to public property, assault on Govt. servant, arson, etc.
16. No participant shall destroy, damage or defile any place of worship or any object held sacred by any class of persons with the intention of thereby insulting any religion or any class of persons.
17. No inflammatory slogans etc. would be raised within 200 meters of any place of religious worship.
18. No shamiana etc. would be erected on any road for any function including public meetings.
19. No loudspeaker or public address system shall be used in the venue of the rally/procession without specific permission from the DCP in whose district the procession/rally is being taken out. Loudspeakers shall be used only between 6 AM to 10 PM

as provided in the Noise Pollution (Regulation and Control) Rules, 2000 framed under the Environment (Protection) Act, 1986 and in compliance of Supreme Court orders.

20. The licensee shall be responsible to keep his followers under control, failing which he will be prosecuted under the law.
21. No animal like horses, elephants, camels, etc. would be allowed in a rally/procession.
22. Crackers, firing by weapons, etc., is prohibited in any procession.
23. In the event of non-compliance of any of the above conditions/restrictions, the procession/meeting/gathering/religious procession/religious function shall be declared as unlawful and prosecution would be launched against the violators. Regarding use of loudspeakers, action would be taken as per provisions of Noise Pollution (Regulation and Control) Rules, 2000 framed under the Environment (protection) Act, 1986.